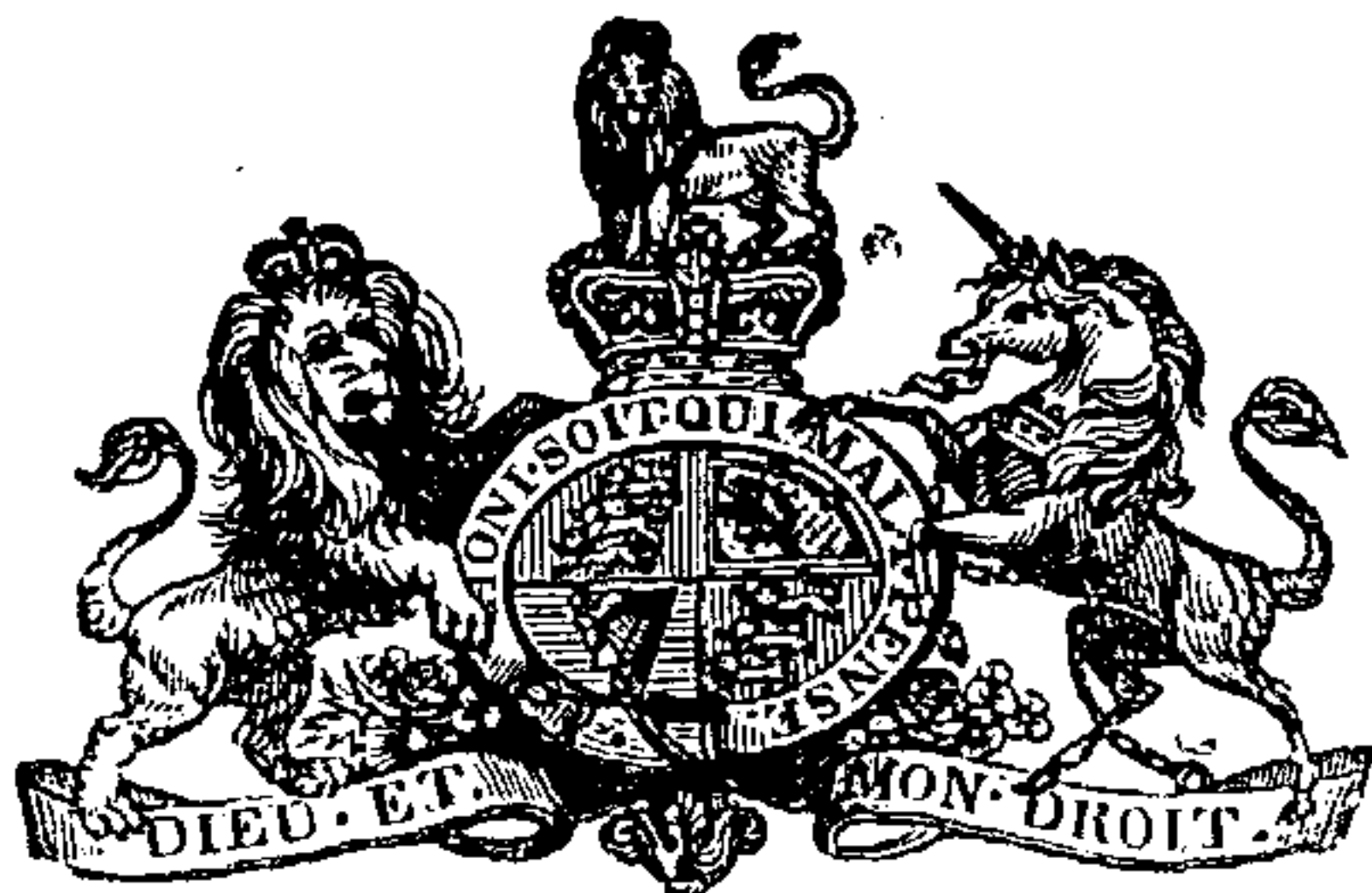




CHAPTER xlii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Billericay (Rural) Drighlington Heston and Isleworth Sunderland and York. A.D. 1901.
[2nd July 1901.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference thereto :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall subject to the provisions of this Act have full validity and force. Orders in schedule confirmed.

2. The authorities mentioned in the Orders relating to Billericay (Rural) Drighlington Heston and Isleworth and Sunderland hereby confirmed shall not under the powers of those Orders purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction of power to take houses of labouring class.

3. The following provisions shall apply to the urban sanitary authority for the City of York (herein-after referred to as "the Corporation") :— Special provisions as to York.

(1.) The Corporation shall not under the powers of the York Order 1901 purchase or acquire ten or more houses which on the

A.D. 1901.

fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until—

(a.) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(b.) They shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2.) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3.) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions if any as they may see fit.

(4.) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5.) If the Corporation acquire or appropriate any house or houses for the purposes of the York Order 1901 hereby confirmed in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty. A.D. 1901.

(6.) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands for the time being belonging to them or which they have power to acquire :

Provided that nothing in this section shall relieve the Corporation from the necessity of obtaining the approval of the Local Government Board for such appropriation or use of their corporate land as would require such approval under the Municipal Corporations Act 1882 (as amended by section seventy-two of the Local Government Act 1888 or any other general Act.

(7.) Subject to the provisions of this section the Corporation and the Local Government Board and their inspectors shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them under the Public Health Act 1875 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act :

Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions if any as they may see fit.

[Ch. xlii.] *Local Government Board's* [1 EDW. 7.]
Provisional Orders Confirmation (No. 3) Act, 1901.

A.D. 1901.

(8.) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Definition of
labouring
class.

4. For the purposes of sections two and three of this Act the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

5. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1901.

SCHEDULE.

A.D. 1901.

RURAL DISTRICT OF BILLERICAY.

Provisional Order to enable the Rural District Council of Billericay to put in force the Compulsory Clauses of the Lands Clauses Acts. *Billericay Rural Order*

To the Rural District Council of Billericay ; —

And to all others whom it may concern.

WHEREAS the Rural District Council of Billericay (herein-after referred to as "the District Council") require to purchase and take the lands described in the schedule hereto for the disposal of the sewage of the contributory place of South Weald in their district and for providing access to such lands :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,— 38 & 39 Vict.
c. 55.

Art. I./The District Council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Billericay Rural Order 1901.

The SCHEDULE above referred to.

A.D. 1901.
Drighlington
Order.

Township of TONG in the City of BRADFORD.

Nos. on deposited Plans.	Description of Lands.	Owner or reputed Owner.	Lessee or reputed Lessee and Occupier.
548	Field - - -	Sir Robert Tempest Tempest Baronet.	George Bolland.
547	Ditto - - -	ditto - - -	ditto.
549A	Ditto - - -	ditto - - -	ditto.
546A	Ditto - - -	ditto - - -	ditto.

Given under the Seal of Office of the Local Government Board this
Eighteenth day of April One thousand nine hundred and one.
(L.S.) WALTER H. LONG President.
S. B. PROVIS Secretary.

URBAN DISTRICT OF HESTON AND ISLEWORTH.

Provisional Order to enable the Urban District Council of Heston and Isleworth to put in force the Compulsory Clauses of the Lands Clauses Acts. *Heston and Isleworth Order.*

To the Urban District Council of Heston and Isleworth ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Heston and Isleworth (herein-after referred to as "the District Council") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the street called Twickenham Road Isleworth in their district :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,— 38 & 39 Vict. c. 55.

Art. I. The District Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Heston and Isleworth Order 1901.

[Ch. xlii.] *Local Government Board's* [1 EDW. 7.]
Provisional Orders Confirmation (No. 3) Act, 1901.

A.D. 1901.

The SCHEDULE above referred to.

*Heston and
Isleworth
Order.*

Parish of ISLEWORTH in the County of MIDDLESEX.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
1	Land adjoining the Brentford Union Schools.	William Podger -	- - -	William Podger.
2	Land forming part of No. 8 Silverhall Place.	Sarah Amelia Ruston William Ruston and Albert Henry Johnson.	Henry Atlee -	Henry Atlee.
3	Land forming part of No. 9 Silverhall Place.	Emily Thomas	Charles James Penny.	Charles James Penny.
4	Land forming part of No. 10 Silverhall Place.	ditto - -	George Walker -	George Walker.
5 and 5A	Land adjoining No. 1 Silverhall Cottages.	Fleetwood Buckle -	William Fry -	William Fry.
6 and 6A	Land forming part of No. 1 Silverhall Cottages.	Joseph Goddard -	James Wade -	James Wade.
7 and 7A	Land forming part of No. 2 Silverhall Cottages.	ditto - -	George Thomas Jeanes.	George Thomas Jeanes.
8 and 8A	Land forming part of Silverhall House.	ditto - -	Sarah Kasaine -	Sarah Kasaine.
9 and 9A	Land forming part of Rock House.	ditto - -	Martha Driver -	Martha Driver.
10 and 10A	Land forming part of the premises known as Saint Mary's.	Sarah Saunders -	William Magee -	George William Fluck.
11	Land forming part of the premises known as the "George" public-house.	Isleworth Brewery Limited.	William Henry Collier Frederick Christopher Parker Ernest Neville and James Bowen.	William Henry Collier Frederick Christopher Parker Ernest Neville and James Bowen.
12	Land forming part of Holme Court.	The Heston School Board and the Chiswick School Board.	- - -	William Edwin Newberry.
13	Land adjoining the Congregational Church.	Edwin Figg Smith	- - -	Edwin Figg Smith.
14	Land forming part of the premises known as the Congregational Church.	The Trustees of the Congregational Church viz. the Reverend William Steen Theodore Foot Alfred Martin Robert Patchett William Reddish and William Given.	- - -	The Trustees of the Congregational Church viz. the Reverend William Steen Theodore Foot Alfred Martin Robert Patchett William Reddish and William Given.
15	Land - - -	Thomas Skewes-Cox M.P.	John Field -	John Field.
16	Land forming part of the premises known as Gumley House Convent.	The Trustees of the Gumley House Convent viz. Catherine Grene Margaret Parkinson Elizabeth Fell Anna Wareing and Anastasia Lacy.	The Reverend Mother Agnes Ellen Bury.	The Reverend Mother Agnes Ellen Bury.
17	Ditto - - -	ditto - -	ditto - -	ditto.
18	Ditto - - -	ditto - -	ditto - -	ditto.
19	Ditto - - -	ditto - -	ditto - -	ditto.

[1 EDW. 7.] *Local Government Board's* [Ch. xlii.]
Provisional Orders Confirmation (No. 3) Act, 1901.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
20	Land forming part of No. 1 Gumley Terrace.	Catherine Grene Margaret Parkinson Elizabeth Fell Anna Waring and Anastasia Lacy.	Thomas Henry Saunders.	Thomas Henry Saunders.
21	Land forming part of No. 2 Gumley Terrace.	Ditto - -	John Bygraves -	John Bygraves.
22	Land forming part of No. 3 Gumley Terrace.	Ditto - -	Edward Simmons -	Edward Simmons.

A.D. 1901.
Heston and Isleworth Order.

Given under the Seal of Office of the Local Government Board this
Twenty-seventh day of March One thousand nine hundred
and one.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF SUNDERLAND.

*Provisional Order to enable the Urban Sanitary Authority for the
Borough of Sunderland to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

Sunderland Order.

To the Mayor Aldermen and Burgesses of the Borough of
Sunderland ;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Sunderland acting by the council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the streets called Smyrna Place and Hendon Road in the said Borough :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz,—

38 & 39 Vict.
c. 55.

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Sunderland Order 1901.

[Ch. xlii.] *Local Government Board's* [1 EDW. 7.]
Provisional Orders Confirmation (No. 3) Act, 1901.

A.D. 1901.

*Sunderland
Order.*

The SCHEDULE above referred to.

Borough of SUNDERLAND.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Land dwelling-house shop and appurtenances Nos. 4 and 5 Smyrna Place.	Elizabeth Cook - - -	Elizabeth Cook and Elizabeth Prudhoe.
2	Land dwelling-house and appurtenances No. 6 Smyrna Place.	Isabella Youll and Hannah Blackett Capel.	George Henry Shave William Wyatt and George Perigo.
3	Land schools dwelling-house and appurtenances No. 99 Hendon Road.	Marmaduke Allan William Bruce Fairley Downs John Henry Graham Robert Hodgson John Wallace Taylor Alfred Edward Usher Thomas Donkin John Spours Nicholson William Bruce the younger Christopher George Barrow James Nicholson John Mowbray Donkin Marmaduke Allan the younger and Lancelot Jackson.	Marmaduke Allan William Bruce Fairley Downs John Henry Graham Robert Hodgson John Wallace Taylor Alfred Edward Usher Thomas Donkin John Spours Nicholson William Bruce the younger Christopher George Barrow James Nicholson John Mowbray Donkin Marmaduke Allan the younger Lancelot Jackson and Elizabeth Ann Smith.

Given under the Seal of Office of the Local Government Board this
Twelfth day of April One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

CITY OF YORK.

York Order. Provisional Order to enable the Urban Sanitary Authority for the City of York to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Lord Mayor Aldermen and Citizens of the City of York ;—

And to all others whom it may concern.

WHEREAS the Lord Mayor Aldermen and Citizens of the City of York acting by the council as the Urban Sanitary Authority for that City (hereinafter referred to as "the Corporation") require to purchase and take the

[1 EDW. 7.] *Local Government Board's* [Ch. xlii.]
Provisional Orders Confirmation (No. 3) Act, 1901.

lands situate in the City and described in the schedule hereto for the following purposes viz,— A.D. 1901.

1. The lands described in Part I. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Coppergate;
2. The lands described in Part II. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Nessgate;
3. The lands described in Part III. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Spurriergate:

York Order.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz,— 38 & 39 Vict. c. 55.

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the York Order 1901.

The SCHEDULE above referred to.

City of YORK.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART I.				
COPPERGATE IMPROVEMENT.				
1	Shop - - -	William Bielby Dyson.	- - -	Emily Jane Leng.
1A	Ground and buildings	ditto - - -	- - -	William Bielby Dyson.
2.	Dwelling-house and shop.	The Trustees of the Will of Thomas Lambert deceased viz. Elizabeth Lambert and Richard Braithwaite Lambert.	- - -	Lucy Bailey.
3	Warehouse - - -	The Trustee of the Will of John Brown deceased viz. Alfred Joseph Wilkinson Dawson.	- - -	Charles Brown. Maltby

A.D. 1901.

York Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
4	Dwelling-house and shop.	The Trustees of the Will of Thomas Lambert deceased viz. Elizabeth Lambert and Richard Braithwaite Lambert.	- - -	Ellen Brady.
5	Covered gateway -	ditto - - -	- - -	Richard Braithwaite Lambert Ellen Brady John Allan Barkworth.
6	Yard - - -	ditto - - -	- - -	ditto.
7	Watercloset -	ditto - - -	- - -	John Allan Barkworth Ellen Brady.
8	Slaughter-house shed stable and yard.	ditto - - -	- - -	Richard Braithwaite Lambert.
9	Dwelling-house and shop.	ditto - - -	- - -	John Allan Barkworth.
10	Dwelling-house -	ditto - - -	- - -	Robert James Andrews.
11	Dwelling-house and shop.	Elizabeth Lambert -	- - -	ditto.
12	Passages (covered) -	ditto - - -	- - -	Robert James Andrews William Sample George William Harding Walter Phillips Charles Dodsworth William Henry Dodsworth George Hick Walter Chapman Isaiah Lewis William Wilson Emma Craven William Frankland Henry Riley.
13	Warehouses -	ditto - - -	- - -	George William Harding.
14	Buildings used as shop and tenements.	ditto - - -	- - -	William Sample Walter Phillips Charles Dodsworth William Henry Dodsworth George Hick Walter Chapman Isaiah Lewis William Wilson Emma Craven William Frankland Henry Riley.
15	Wareroom - -	ditto - - -	- - -	Robert James Andrews.
16	Dwelling-house yard and outbuildings.	The Feoffees of Saint Michael Spurriergate viz. Henry Scott William Henry Hey John Pulleyn Thomas Sanderson Edward Peart Brett.	- - -	Mary Dalby Eliza Clout Elizabeth Hamilton Dorothy Wray.
17	Part of dwelling-house and shop.	The Dean and Chapter of the Cathedral and Metropolitan Church of Saint Peter of York.	The Corporation -	John Marshall Louisa Savage.

[1 EDW. 7.]

Local Government Board's
Provisional Orders Confirmation (No. 3) Act, 1901.

[Ch. xlii.]

A.D. 1901.
York Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART II.				
NESSGATE IMPROVEMENT.				
1	Dwelling-house shop yard and outbuildings.	Mary Ann Barker	Alfred Smith	Alfred Smith.
2	Dwelling-house public-house yards and outbuildings.	Walker and Company Limited.	- - -	William John Rickaby.
2A	Warehouse - -	ditto - -	- - -	ditto.
3	Dwelling-house shop warehouses and outbuildings.	John Rex - -	- - -	John Rex William Pickering Fawcett.
4	Dwelling-house public-house brew-house dram shop cellars yards and outbuildings.	William Morton Bell Junior James Douglas Bell Robert Alfred Bell Mary Cecilia Bell.	- - -	Francis Bucktin.
4A	Warehouse and stables.	ditto - -	- - -	ditto.
5	Dwelling-house and shop.	The Trustees of the Will of Richard Mason deceased viz. John Shouksmith Joseph Peters.	- - -	John Coates.
6	Shop and room -	ditto - -	- - -	John Shillito.
7	Dwelling-house public-house cellars warehouses yard and outbuildings.	ditto - -	John Smith and Company Limited.	John Smith and Company Limited.
8	Dwelling-house shop yard and outbuildings.	The Trustees of the Will of Robert Mosley deceased viz. George Mosley Robert Vyvian Acton Mosley.	- - -	George Herbert Nowell.
9	Shop warehouses cellars and office.	ditto - -	- - -	Walter Fowler John William Fowler.
11	Public highway (Nessgate) telephone cables and wires.	The National Telephone Company Limited	—	—
PART III.				
SPURRIERGATE IMPROVEMENT.				
1	Public highway (Spurriergate) telephone cables and wires.	The National Telephone Company Limited.	—	—
2	Dwelling-house and shop.	The Feoffees of Saint Michael Spurriergate viz. Henry Scott William Henry Hey John Pulleyn Thomas Sanderson Edward Peart Brett.	Thomas William Broadbent.	Thomas William Broadbent.

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Provisional Orders Confirmation (No. 3) Act, 1901.

A.D. 1901.

York Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
3	Dwelling-house and shop.	John Aspinall - -	Norman Barber. Robert	Norman Robert Barber.
4	Dwelling-house yard and outbuildings.	ditto - -	ditto - -	ditto.
5	Passage (partly covered).	John Aspinall the National Provincial Bank of England Limited Godfrey Vernon Birks.	- - -	Norman Robert Barber John Aspinall Thomas Masterman the National Provincial Bank of England Limited Mary Sessions Samuel Brabbs Eugenie Avison.
6	Dwelling house shop yard passage and outbuildings.	John Aspinall - -	- - -	John Aspinall Thomas Masterman.
7	Dwelling-house shop yard and outbuildings.	Thomas Masterman -	- - -	William Banks.
8	Dwelling-house yard passage and outbuildings.	John Aspinall - -	- - -	Samuel Brabbs.

Given under the Seal of Office of the Local Government Board this
Seventeenth day of April One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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